

		Moving Party to give notice.
52	De La O Ojeda vs. 2100 E 4th St 92705 LLC 24-01398443	Motion for Leave to File Cross Complaint The Motion for Leave to File a Cross-Complaint brought by Defendant 2100 E. 4th St 92705 LLC is GRANTED, pursuant to Code of Civil Procedure section 428.50. Defendant seeks leave to file a Cross-Complaint against the Consulate of the United Mexican States in Santa Ana, seeking: (1) Equitable Indemnity; (2) Apportionment of Fault; (3) Express Indemnity; and (4) Declaratory Relief. (¶3 of Arnall Declaration and Exhibit 1 thereto). The proposed Cross-Complaint specifically identifies the instant action and asserts proposed Cross-Defendant shares liability for the injuries sustained by Plaintiff. (See ¶2, ¶7, ¶10 and ¶15-¶16 of Proposed Cross-Complaint [Exhibit 1 of Arnall Declaration]). Per Counsel, “[t]he basis of the proposed cross-complaint is contractual indemnity and defense owed by the Consulate pursuant to the terms of the written lease entered into between Defendant and the Consulate....” (¶5 of Arnall Declaration). “Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) “An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) Based on the above, the proposed pleading qualifies for leave pursuant to Code of Civil Procedure section 428.10, subdivision (b)(1). Additionally, as no prejudice is apparent from the request, leave to amend is GRANTED. Defendant shall separately file and serve their Proposed Cross-Complaint (¶3 of Arnall Declaration and Exhibit 1 thereto), within 10 days of this order.
53	Mirzadeh vs. Sandoval 25-01507072	Demurrer to Complaint & Motion to Quash Service of Summons Demurrer to Complaint Defendant Capital Aspects Limited Liability Co. (“Capital Aspects”) demurs to the first and second causes of action asserted in the Complaint filed by Moshen Mirzadeh. The demurrer is SUSTAINED. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)